

Obiter Creep: How Marginal Dicta Colonize Ratio Decidendi Through Extended Phenotype Mechanisms

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Abstract

Courts routinely cite obiter dicta from prior decisions as if they were ratio decidendi, constructing genealogies of apparent doctrinal continuity that mask substantial normative innovation. The phenomenon is well documented in Anglo-American, Australian, and Canadian jurisprudence, yet the existing literature describes what happens without explaining why it works, why it persists, or why it accumulates.

This paper proposes a causal mechanism grounded in three interconnected frameworks from evolutionary biology and cognitive science: Extended Phenotype Theory (EPT), which models obiter dicta as latent memes activated through the reproductive machinery of stare decisis; Heteronomous Bayesian Updating (HBU), which explains why legal operators follow promoted obiter without verifying its doctrinal status; and Evolutionary Game Theory (EGT), which demonstrates that obiter promotion is a dominant strategy yielding the benefits of doctrinal innovation at a fraction of the reputational cost of explicit overruling.

I apply this framework to the Argentine Supreme Court's emergency doctrine chain, tracing five landmark decisions from Ercolano (1922) through Bustos (2004). The genealogical reconstruction identifies three distinct types of doctrinal migration operating simultaneously: status migration (obiter to ratio), institutional migration (legislature to executive), and functional migration (regulation to deregulation). The case study reveals that each link in the chain drew its authority from the broadest propositions of prior cases rather than from their narrow holdings, producing a cumulative doctrine of presidential emergency power that no single decision's ratio ever established.

Comparative analysis with Colombia (where the ratio/obiter distinction has been formalized) and Australia (where the category of "seriously considered dicta" was introduced) suggests that formal doctrinal constraints are insufficient to prevent obiter creep when the underlying cognitive mechanism (HBU) remains operative.

The paper generates five falsifiable predictions, including that jurisdictions with higher Constitutional Lock-in Index scores should exhibit greater rates of obiter promotion. This represents the first application of evolutionary theory to the specific phenomenon of obiter-to-ratio migration.

Keywords: Extended Phenotype Theory, obiter dictum, ratio decidendi, stare decisis, Heteronomous Bayesian Updating, evolutionary game theory, Argentine constitutional law, emergency doctrine, precedent drift, memetic evolution, institutional lock-in, Parasitic Spontaneous Order

JEL Classification: K00, K40, D83, C73

I. Introduction: The Invisible Migration

In 1938, Justice Harlan Fiske Stone inserted a footnote into a case about adulterated milk.¹ The footnote suggested, in three paragraphs, that legislation restricting political processes or targeting "discrete and insular minorities" might warrant heightened judicial scrutiny. The case itself, *United States v. Carolene Products Co.*, upheld the regulation of filled milk under rational basis review. Footnote 4 was entirely superfluous to the holding. Over the following two decades, that footnote's suggestions were progressively elevated to constitutional doctrine; first as the "Preferred Position Doctrine," then as formal strict scrutiny, until by the time of the Warren Court the footnote's content was assumed as established law. No single decision formally promoted the footnote. The transformation was diffuse, incremental, and, by the time anyone noticed, irreversible.

The same year, across the Atlantic, the House of Lords in *Hedley Byrne & Co Ltd v Heller & Partners Ltd* found no liability for negligent misstatement because the defendants had disclaimed responsibility.² The entire extended discussion of when a duty of care *could* arise for negligent statements was obiter dictum. That obiter discussion became the doctrinal foundation for an entire branch of English tort law covering pure economic loss. In Buenos Aires, between 1922 and 2004, the Argentine Supreme Court constructed a doctrine of presidential emergency power by progressively citing the broadest propositions of each prior case in the chain, propositions that were not strictly necessary to resolve the prior disputes, as if they were binding holdings.³

The phenomenon has a name in the literature: the promotion of obiter dicta to ratio decidendi. Judith Stinson identified three structural mechanisms driving the conflation of holding and dicta in American courts.⁴ Arjun Singh argued that the Supreme Court of Canada's self-understanding as "jurisprudential overseer" logically obliterates the ratio/obiter distinction, an implication he presents as *reductio ad absurdum* against the prevailing orthodoxy rather than as endorsement of

¹United States v. Carolene Products Co., 304 U.S. 144 (1938), Footnote 4.

²Hedley Byrne & Co Ltd v Heller & Partners Ltd [1964] AC 465 (HL).

³Alberto B. Bianchi, "Control de constitucionalidad" and related works analyzing Peralta's citation structure.

⁴Judith Stinson, "Why Dicta Becomes Holding and Why It Matters," Brooklyn Law Review 76 (2010): 27-30.

the phenomenon.⁵ Harding and Malkin documented the shift in Australian lower courts toward treating High Court obiter as quasi-binding after *Farah Constructions*.⁶ Neil Duxbury provided the most recent comprehensive treatment, observing that lawyers and judges "do not always agree, indeed are not always sure, what is and what is not obiter in a judgment."⁷

This literature describes what happens. It does not explain why it works. More precisely: it does not offer a causal mechanism that accounts for why obiter promotion succeeds as a strategy, why legal operators follow promoted obiter without independently verifying its doctrinal status, why the process self-reinforces rather than self-correcting, or why certain institutional environments exhibit more of it than others. The present paper proposes such a mechanism, drawing on three interconnected frameworks: Extended Phenotype Theory (EPT), Heteronomous Bayesian Updating (HBU), and Evolutionary Game Theory (EGT).⁸

The argument proceeds as follows. Section II establishes the constitutive indeterminacy of the ratio/obiter distinction as the condition of possibility for the phenomenon. Section III develops the three-part theoretical framework. Section IV examines the Argentine institutional environment as a niche particularly favorable to obiter promotion. Section V presents the case study: a genealogical reconstruction of the Argentine emergency doctrine chain from *Ercolano* (1922) through *Bustos* (2004), identifying three distinct types of doctrinal migration. Section VI offers comparative analysis. Section VII generates falsifiable predictions. Section VIII addresses limitations and counter-arguments.

Epistemological positioning. This paper operates within a Lakatosian framework of scientific research programmes.⁹ Extended Phenotype Theory applied to legal systems constitutes the hard core; the auxiliary hypotheses (HBU, EGT dynamics, CLI measurement) form the protective belt subject to revision in light of anomalies. Popper provides the demarcation criterion: every claim is formulated to be falsifiable.¹⁰ Hull and Campbell supply the meta-theoretical warrant for applying evolutionary reasoning to intellectual traditions themselves.¹¹¹²

⁵Arjun Singh, "The Highest Suggestion in the Land: Obiter Dicta and the Modern Supreme Court of Canada," *Osgoode Hall Law Journal* 61, no. 1 (2024), Article 1.

⁶Matthew Harding and Ian Malkin, "The High Court of Australia's Obiter Dicta and Decision-Making in Lower Courts," *Sydney Law Review* 34 (2012): 239-272.

⁷Neil Duxbury, *The Intricacies of Dicta and Dissent* (Cambridge: Cambridge University Press, 2021).

⁸Ignacio A. Lerer, "Law as a Primary Adaptive Platform: Generalized Darwinism, Extended Phenotype Theory, and the Methodological Foundations of Evolutionary Jurisprudence" (Zenodo, 2026), DOI 10.5281/zenodo.18870552.

⁹Imre Lakatos, *The Methodology of Scientific Research Programmes* (Cambridge: Cambridge University Press, 1978).

¹⁰Karl Popper, *The Logic of Scientific Discovery* (London: Hutchinson, 1959).

¹¹David Hull, *Science as a Process: An Evolutionary Account of the Social and Conceptual Development of Science* (Chicago: University of Chicago Press, 1988).

¹²Donald Campbell, "Evolutionary Epistemology," in *The Philosophy of Karl Popper*, ed. P.A. Schilpp (La Salle, IL: Open Court, 1974).

II. The Constitutive Indeterminacy of the Ratio/Obiter Distinction

Any explanation of obiter-to-ratio promotion must begin with an uncomfortable fact: the distinction between ratio decidendi and obiter dictum is inherently indeterminate. Julius Stone demonstrated in 1959 that every appellate case generates multiple competing rationes decidendi because every material fact can be stated at any number of levels of generality, each yielding a different rule.¹³ The later court, in choosing among these competing formulations, is not discovering a pre-existing ratio but determining which of several possible rules shall govern the instant case. Stone concluded that the assumption underlying Arthur Goodhart's entire system¹⁴, that there is normally one ratio decidendi and one only, is demonstrably false.

The three classical tests for identifying the ratio all fail to resolve the indeterminacy. Goodhart's material facts test (1930) anchors the ratio in the judge's "choice of material facts," but any case can yield as many competing formulations of material facts as there are conceivable levels of generality. Wambaugh's inversion test (1892) directs a court to reverse the proposition of law and ask whether the decision would have been different; the test identifies what the ratio *cannot* be (propositions whose removal would not change the outcome) but cannot select among multiple necessary propositions that all satisfy the but-for criterion. Cross and Harris's necessity test defines the ratio as "any rule of law expressly or impliedly treated by the judge as a necessary step in reaching his conclusion," but "necessity" is itself a characterization assigned by a subsequent court rather than a logical feature of the judgment.¹⁵

This indeterminacy is not an epistemological failure to be corrected by better analytical tools. It is a structural feature of precedent-based reasoning. Stone's descriptive/prescriptive distinction captures the point precisely: the "descriptive" ratio is what the prior court believed it was deciding; the "prescriptive" ratio is what the later court decides it is bound by. The two can diverge enormously, and the gap between them is the space within which obiter promotion operates.

Melvin Eisenberg's result-centered account of precedent minimizes this gap by anchoring the binding element in the disposition rather than the reasoning.¹⁶ But this move, paradoxically, makes the problem worse: by treating most judicial reasoning as formally non-binding, Eisenberg's framework leaves nearly all of a court's doctrinal elaboration available for selective amplification by subsequent courts. If only the narrow disposition binds, everything else is technically obiter, and the space for promotion expands rather than contracts.

¹³ Julius Stone, "The Ratio of the Ratio Decidendi," *Modern Law Review* 22, no. 6 (1959): 597-620.

¹⁴ Arthur Goodhart, "Determining the Ratio Decidendi of a Case," *Yale Law Journal* 40 (1930): 161-183.

¹⁵ Rupert Cross and J.W. Harris, *Precedent in English Law*, 4th ed. (Oxford: Clarendon Press, 1991), ch. 2.

¹⁶ Melvin Eisenberg, *The Nature of the Common Law* (Cambridge, MA: Harvard University Press, 1988), ch. 3.

Michael Dorf offered the strongest structural objection: because Article III of the US Constitution limits federal judicial authority to "cases and controversies," statements not necessary to resolve the dispute lack legitimate constitutional authority.¹⁷ Courts that treat such statements as binding are permitting the judicial branch to make law without the adversarial process that Article III requires. Dorf's central claim is that judicial reasoning in obiter is structurally less reliable than reasoning in ratio: courts deciding their cases benefit from adversarial testing, factual concreteness, and the discipline of consequences, none of which constrain dicta. The argument is normatively powerful but institutionally toothless: it describes what courts should not do, not what prevents them from doing it.

The constitutive indeterminacy of the ratio/obiter distinction is, in the terms of this paper's framework, the ecological condition that makes obiter promotion possible. If the distinction were sharp and enforceable, the promotional strategy would be costly and detectable. Because it is blurred and unenforced, the strategy operates at low cost and high reward. The question becomes: what mechanism drives the process, sustains it across time, and causes it to accumulate rather than self-correct?

III. Theoretical Framework: EPT, HBU, and EGT Applied to Precedent Dynamics

A. Extended Phenotype Theory: Obiter as Latent Meme

Richard Dawkins's concept of the extended phenotype recognizes that genes can have phenotypic effects beyond the body of the organism carrying them.¹⁸ The beaver's dam, the spider's web, and the caddisfly's case are all extended phenotypes: structures in the external world built by organisms under genetic influence that serve the replicating interests of the genes involved. Applied to cultural evolution, memes (units of cultural information) can construct extended phenotypes in the institutional world: courts, curricula, professional certifications, and enforcement agencies that serve the replicating interests of the doctrines involved.^{19,20}

Under this framework, a ratio decidendi is a meme with active phenotypic expression. It possesses reproductive machinery: the obligation of stare decisis generates downstream citations, law school

¹⁷Michael Dorf, "Dicta and Article III," *University of Pennsylvania Law Review* 142, no. 6 (1994): 1997-2069.

¹⁸Richard Dawkins, *The Extended Phenotype: The Long Reach of the Gene* (Oxford: Oxford University Press, 1982).

¹⁹Richard Dawkins, *The Selfish Gene*, 30th anniversary ed. (Oxford: Oxford University Press, 2006).

curricula elaborate its content, doctrinal commentary amplifies its reach, and professional socialization ensures its transmission across generations of legal operators. An obiter dictum, by contrast, is a meme in a state of latency. It exists in the text of the judgment, occupies space in the informational niche, but lacks the reproductive machinery that ratio decidendi possesses. No court is obliged to follow it. No curriculum must teach it as binding. No doctrinal treatment needs to elaborate it as operative law.

The promotion of obiter to ratio is, in this framework, the activation of a silenced gene. An exogenous regulatory element (the judge of the subsequent case) "turns on" the phenotypic expression of the latent meme by citing it as the foundation of a new decision. Critically, the judge does so using the reproductive machinery of stare decisis as the vehicle, parasitizing the legitimacy of the precedent system to propagate content that was not selected by that system. Once activated, the promoted obiter begins to accumulate its own extended phenotype: citations, doctrinal commentary, inclusion in jurisprudential compendiums, treatment in classroom instruction. Each additional element of the phenotype makes reversal more costly, because dismantling the promotional structure requires undoing the institutional infrastructure built around it.

B. Heteronomous Bayesian Updating: Why Promotion Works

The mechanism's efficacy depends on how legal operators process precedential information. The HBU framework proposes that legal professionals learn norms primarily by observing institutional reactions rather than by independently verifying doctrinal content.²¹ An Argentine law student does not learn constitutional doctrine by conducting independent analysis of whether provisions produce beneficial outcomes. The student observes how the Supreme Court cites provisions, how professors describe them in lectures, how law review articles treat them, and how bar associations defend them. These reactions form priors through Bayesian updating weighted by authority and coordination signals, creating beliefs that resist subsequent updating through independent outcome observation.

Applied to the obiter promotion problem, HBU explains a puzzle that the doctrinal literature cannot: why do subsequent courts and practitioners follow promoted obiter as if it were ratio, when the promotional act is, in principle, detectable? The answer lies in the information structure. A legal operator who encounters a citation to a prior case does not verify whether the cited proposition was ratio or obiter in the original case. The operator observes that a higher court (or a court of equivalent authority) *treated* the proposition as authoritative. That treatment constitutes a high-authority reaction (HBU Type 1: authority convergence), and authority convergence is the most powerful signal in the HBU framework. A single convergent citation from a supreme court carries more information, in Bayesian terms, than dozens of independent verifications of the proposition's original doctrinal status.

²¹Ignacio A. Lerer, "Heteronomous Bayesian Updating: From Individual Cognition to Institutional Lock-in" (Zenodo, 2025).

The connection to Talley's precedential cascades is direct.²² Talley, applying the Bikhchandani-Hirshleifer-Welch model of informational cascades to legal precedent,²³ showed that "a binding rule may crystallize for all future cases, even if the rule is an inefficient fit for such cases." HBU provides the cognitive micro-foundation for Talley's macro-level observation: cascades work because individual operators update by observing the behavior of prior operators (reaction-based learning) rather than by independently processing the underlying information (outcome-based learning). Once a promoted obiter achieves even a small number of authoritative citations, the cascade logic applies: subsequent operators, lacking the information or institutional standing to break the cascade, follow the emerging rule regardless of its original doctrinal status.

C. Evolutionary Game Theory: Obiter Promotion as Dominant Strategy

From an EGT perspective, obiter promotion is not an error, a failure of legal reasoning, or an abuse of precedent. It is a rational strategy with a payoff profile that dominates the available alternatives. Consider the judge who wishes to introduce a new normative proposition into the law. Three strategies are available:

Strategy 1: Explicit overruling. The judge openly departs from or overrules prior doctrine. The benefit is maximum clarity; the cost is maximum visibility. Explicit overruling exposes the judge to institutional sanctions (reversal by a higher court), reputational costs (appearing activist or unprincipled), and systemic friction (disrupting the expectations of all operators who relied on the prior rule).

Strategy 2: Distinguishing. The judge confines the prior case to its specific facts and decides the instant case on different grounds. The benefit is avoiding confrontation; the cost is limited reach, since the new proposition applies only to the distinguished facts.

Strategy 3: Obiter promotion. The judge cites an obiter proposition from a prior case as if it were the ratio, obtaining the authority of stare decisis for a proposition that the prior court did not actually bind anyone to follow. The benefit is the combination of doctrinal innovation with the appearance of continuity. The cost is minimal, because, as Section II established, the ratio/obiter distinction is inherently blurred and no institutional mechanism systematically verifies whether cited precedent was actually ratio.

In game-theoretic terms, Strategy 3 weakly dominates Strategies 1 and 2 across a wide range of conditions. It achieves the doctrinal innovation of overruling without the reputational cost, and the authority of stare decisis without the factual confinement of distinguishing. The only condition under which Strategy 3 fails is when a subsequent operator conducts a genealogical audit, tracing the cited proposition back to its original case and demonstrating that it was obiter. Such audits are

²²Eric Talley, "Precedential Cascades: An Appraisal," *Southern California Law Review* 73 (1999): 87-137.

²³Sushil Bikhchandani, David Hirshleifer, and Ivo Welch, "A Theory of Fads, Fashion, Custom, and Cultural Change as Informational Cascades," *Journal of Political Economy* 100 (1992): 992-1026.

extraordinarily rare, because HBU predicts exactly that operators update by reaction, not by verification. The expected payoff of Strategy 3 is therefore higher than that of either alternative, making it the evolutionarily stable strategy in the judicial game.

D. The Three Mechanisms Combined: A Causal Chain

The three frameworks interlock to produce a self-reinforcing dynamic. EPT provides the substrate: obiter dicta as latent memes available for activation. EGT provides the selection pressure: obiter promotion is a dominant strategy because it combines high benefit with low cost. HBU provides the propagation mechanism: once a court promotes an obiter, subsequent operators treat the promotion as authoritative through reaction-based learning rather than verifying its genealogical validity. Each citation to the promoted proposition adds a brick to its extended phenotype, making future reversal more costly and further reducing the probability that any operator will invest the effort to conduct a genealogical audit.

The result is what I term *obiter creep*: the gradual, cumulative colonization of ratio decidendi by promoted obiter dicta, producing a body of operative doctrine whose genealogical foundations are fictitious. The process is a specific instance of Parasitic Spontaneous Order (PSO):²⁴ each individual judge acts for local reasons (resolving the instant case using the best available doctrinal material), without coordination, but the aggregation of individual decisions produces a systemic pattern of doctrinal drift that no one designed and no one controls.

IV. The Argentine Institutional Environment as Favorable Niche

Not all institutional environments are equally hospitable to obiter creep. The EPT framework predicts that the rate of obiter promotion should be higher in environments where: (a) the ratio/obiter distinction is formally weak or informally unenforced; (b) the precedent system combines de jure flexibility with de facto rigidity; and (c) the professional community lacks systematic methods for genealogical verification. The Argentine legal system satisfies all three conditions.

Maria Angelica Gelli provides the most explicit Argentine definition: the holding is "the argument that sustains" the decision, such that removing it would deprive the resolution of its consistency, while the obiter dictum is the argument "a mayor abundamiento" that does not sustain the

²⁴Ignacio A. Lerer, "Predatory Invitations as Extended Phenotype: A Parasitic Spontaneous Order Framework for Academic Publishing" (Zenodo, 2026), DOI 10.5281/zenodo.18853667.

decision.²⁵ Gelli adds something especially valuable for the present analysis: obiter dicta can function as "metamensajes" directed at parties, other branches of government, or society at large. This characterization, which Gelli intends descriptively, is a precise functional description of memetic signaling. The metamensaje is a meme in transmission-latent phase: it lacks the reproductive machinery of the holding but is already present in the institutional communication channel, available for activation by a subsequent court.

Santiago Legarre and Julio Cesar Rivera (h.) mapped three competing positions among Argentine lower courts regarding the obligation to follow the CSJN's doctrine: unrestricted freedom (the court may depart without justification), conditioned freedom (the court may depart only if it provides new and valid reasons), and strict obligation.²⁶ Under EGT analysis, these three positions are not abstract doctrinal commitments but strategies in a repeated game between tribunals. Conditioned freedom is the evolutionarily stable strategy: it permits the lower court to signal deference (low reputational cost) while retaining the option to depart when convenient (high adaptive benefit). Obiter promotion operates within exactly this strategic space. A lower court that cites a CSJN obiter as ratio is neither departing from precedent (it does not pay the cost of *apartamiento fundado*) nor strictly following the holding (it obtains the benefit of normative innovation). It is playing a third strategy that parasitizes the ambiguity of the system.

Florencia Ratti Mendana confirmed in 2024 that Argentine legal practice suffers from "insufficient training for the analysis of precedents," a problem she traces to methodological and forensic deficiencies rather than normative gaps.²⁷ In evolutionary terms, this is an environment with low selective pressure against doctrinal parasitism: if no one systematically verifies whether cited precedent was actually ratio, the promotional strategy encounters no predators. The Constitutional Lock-in Index (CLI) for Argentina, estimated at approximately 0.89 on a 0-1 scale, is the highest in a ten-country comparative sample.²⁸ High CLI predicts that formal reform is difficult; combined with low genealogical verification, it predicts that informal doctrinal innovation through obiter promotion becomes the path of least resistance.

The strategic behavior literature reinforces this analysis. Helmke demonstrated that Argentine Supreme Court justices engage in "strategic defection" under conditions of institutional insecurity, deciding against weak or declining governments to protect their positions.²⁹ Spiller and Tommasi

²⁵Maria Angelica Gelli, *Constitucion de la Nacion Argentina: Comentada y concordada*, T. II (Buenos Aires: La Ley, 2011).

²⁶Santiago Legarre and Julio Cesar Rivera (h.), "La obligatoriedad de los fallos de la Corte Suprema de Justicia de la Nacion desde la perspectiva de los tribunales inferiores," in *Dialnet*.

²⁷Florencia Ratti Mendana, "La construccion de una cultura juridica para el precedente: desafios y soluciones," *Boletin Mexicano de Derecho Comparado* 56, no. 168 (2024): 177-210.

²⁸The Constitutional Lock-in Index (CLI) measures structural rigidity across five dimensions: text vagueness, judicial activism, treaty hierarchy, precedent weight, and amendment difficulty. Argentina's CLI of approximately 0.89 is the highest in a ten-country comparative sample. See Lerer (2026), *supra* note 13.

²⁹Gretchen Helmke, "The Logic of Strategic Defection: Court-Executive Relations in Argentina under Dictatorship and Democracy," *American Political Science Review* 96, no. 2 (2002).

documented that Argentine public policy operates under conditions of low inter-temporal cooperation and high instability.³⁰ Iaryczower, Spiller, and Tommasi analyzed judicial independence in unstable environments.³¹ None of these authors analyzed obiter promotion specifically, but their findings describe exactly the institutional ecology in which the EPT mechanism predicts obiter creep will flourish: a system where doctrinal continuity carries high legitimacy value, where formal reform is blocked, and where informal innovation is the only available path for doctrinal change.

V. Case Study: The Emergency Doctrine Chain

The Argentine Supreme Court's emergency economic doctrine offers the most complete documented example of cumulative obiter creep. The chain spans five landmark decisions over eighty-two years, each extending the scope of permissible governmental interference with private property and contractual rights by drawing authority from the broadest propositions of its predecessors. The genealogical reconstruction that follows identifies, at each link, the probable ratio decidendi, the obiter dicta, and the specific propositions that migrated from one case to the next.

A. Ercolano (1922): The Narrow Seed

Agustin Ercolano was a tenant whose rent had been frozen by Ley 11.157, which prohibited rent increases for two years on urban residential properties.³² The landlord, Julieta Lanteri de Renshaw, challenged the law under Articles 14 and 17 of the National Constitution. The specific dispute was narrow: whether a two-year legislative freeze on residential rents for a lease without a fixed term violated the property guarantee. The CSJN upheld the law.

The propositions strictly necessary to resolve this dispute were two: first, that the police power extends to the temporary regulation of rent prices when there is a documented housing emergency and the regulated relationship does not involve already-acquired contractual rights; second, that the property guarantee of Article 17 is not absolute and is subject to reasonable legislative regulation under Article 14. These two propositions were sufficient to uphold Ley 11.157 as applied to a lease without a previously agreed fixed rent.

³⁰Pablo T. Spiller and Mariano Tommasi, *The Institutional Foundations of Public Policy: A Transactions Approach with Application to Argentina* (Cambridge: Cambridge University Press, 2007).

³¹Matias Iaryczower, Pablo T. Spiller, and Mariano Tommasi, "Judicial Independence in Unstable Environments, Argentina 1935-1998," *American Journal of Political Science* 46, no. 4 (2002): 699-716.

³²CSJN, *Ercolano c/ Lanteri de Renshaw*, Fallos 136:161 (28 April 1922).

The opinion, however, contained broad additional language about state power that went far beyond what a rent freeze on month-to-month tenancies required. General propositions suggested that the legislature could restrict any private contract when the public welfare required it, without limiting this authority to housing markets. Language implied that property rights must "harmonize with social needs" in a manner that would later be cited as unlimited authority for economic regulation generally. The decision in *Horta c/ Harguindeguy*, decided only six months later on the same law, makes the ratio of *Ercolano* visible in relief.³³ In *Horta*, the CSJN declared the same law unconstitutional as applied to a lease with a pre-existing fixed term, because the law altered an already-acquired right. The Court distinguished *Ercolano* as limited to leases without a fixed term. The broad police power language, which would later drive the entire emergency chain, was obiter.

B. Avico (1934): The First Promotion

Twelve years later, during the Great Depression, the CSJN confronted Ley 11.741, which reduced mortgage interest rates to 6% and extended the term for mortgage enforcement by three years.³⁴ The Court upheld the law, citing both *Ercolano* and the US Supreme Court's recently decided *Home Building & Loan Association v. Blaisdell*.³⁵

The critical doctrinal question is: which propositions from *Ercolano* did *Avico* cite? Bianchi's structural analysis confirms that *Avico* drew on *Ercolano*'s obiter: the broad police power language about emergency regulation of contracts, not its narrow holding about rent freezes on unfixed-term tenancies.³⁶ This was the first promotional link in the chain. Bianchi observes that in *Avico*, "the bases necessary to sustain the constitutionality of any restriction on private economic liberty were perfected."

Simultaneously, *Avico* imported from *Blaisdell* both its ratio (the five-part test for emergency legislation validity) and its obiter (broad language about emergency power and constitutional dynamism). The five-part test, as Elias documents, was progressively abandoned in subsequent Argentine applications; courts "admitted the validity of many regulations which did not comply with the requirements mentioned at all."³⁷ What survived was the obiter: the broad proposition that economic emergency furnishes occasion for the exercise of state power over private rights. The ratio was lost in transmission. Only the obiter persisted.

³³CSJN, *Horta c/ Harguindeguy*, Fallos 137:47 (1922). The Court declared the same Ley 11.157 unconstitutional as applied to a lease with a pre-existing fixed term, demonstrating that *Ercolano*'s actual holding was confined to month-to-month tenancies.

³⁴CSJN, *Avico c/ de la Pesa*, Fallos 172:21 (7 December 1934).

³⁵*Home Building & Loan Association v. Blaisdell*, 290 U.S. 398 (1934).

³⁷Jose Sebastian Elias, "Permanent Economic Emergency in Argentina and its Constitutional Implications," *Revista Latinoamericana de Derecho* (UNAM, 2021).

C. Cine Callao (1960): The Non-Emergency Expansion

The most structurally revealing link in the chain is *Cine Callao*.³⁸ Ley 14.226 required cinema owners to include live variety entertainment performances at their own expense. The stated rationale was the employment crisis among stage performers caused by the proliferation of cinemas, a labor-market displacement problem. This was not an economic emergency threatening national survival. The CSJN upheld the law under a maximalist conception of police power that explicitly abandoned the restrictive prior jurisprudence.

Cine Callao did not validate emergency legislation. It validated ordinary social legislation under a broad police power theory that did not require emergency conditions. The Court did not need to invoke the *Ercolano/Avico* emergency line at all. By abandoning the restrictive conception of police power entirely, however, *Cine Callao* produced a general doctrine that would later enable the *Peralta* Court to combine the broad police power from *Cine Callao* with the emergency-power propositions from *Ercolano/Avico*, producing a combined doctrine more powerful than either source.

D. Peralta (1990): The Triple Migration

On December 27, 1990, the CSJN validated DNU 36/90, which converted private bank deposits into illiquid government bonds.³⁹ The decision represents the most complex instance of obiter creep in the chain, because three distinct types of migration operated simultaneously.

Status migration (obiter to ratio). The Court cited *Ercolano*, *Avico*, and *Blaisdell* for the proposition that property rights can be restricted during economic emergencies. As established above, the propositions cited were the broadest available readings of each prior case, not their narrow holdings. Bianchi's analysis is precise: the CSJN "did not need to invent new law" but achieved a dramatic result by "dusting off old and well-known relics" and applying their most expansive readings.⁴⁰

Institutional migration (legislature to executive). *Ercolano*, *Avico*, and *Cine Callao* all validated legislative acts. *Peralta* used their doctrine to validate a *presidential decree* issued without any prior legislative authorization. The entire body of emergency jurisprudence had been constructed to justify congressional action; *Peralta* transferred that justification to the executive branch. No holding in any prior case supported presidential decree power in this context.

Functional migration (regulation to deregulation). This is perhaps the most remarkable dimension. The entire chain from *Ercolano* through *Cine Callao* built a doctrine that expanded the

³⁸CSJN, *Cine Callao*, Fallos 247:121 (22 June 1960).

³⁹CSJN, *Peralta c/ Estado Nacional*, Fallos 313:1513 (27 December 1990).

state's capacity to *regulate*: to impose restrictions, controls, and obligations on private economic activity. *Ercolano* froze rents. *Avico* reduced interest rates. *Cine Callao* compelled hiring. The direction was always the same: the state imposing burdens on the private sector. *Peralta* took this doctrine and applied it to a confiscatory conversion of private deposits into government bonds, in the context of a broader program of deregulation, privatization, and structural adjustment. The meme conserved its formal structure (the state may modify private economic relations in emergency) while inverting its functional content (from regulation to deregulation, from congressional intervention to executive confiscation).

In evolutionary biology, this is exaptation: a structure that evolved for one function is co-opted for a different function.⁴¹ The replicator (the emergency doctrine meme) was copied with high fidelity; what changed was the phenotype it expressed. The three migrations, operating simultaneously and reinforcing each other, were invisible under HBU: legal operators observed that the CSJN cited canonical precedents (*Ercolano*, *Avico*, *Blaisdell*), processed this as a signal of doctrinal continuity, and updated their priors accordingly. Detecting the triple migration would have required independent analysis of the content, institutional context, and functional direction of each cited proposition, an audit that HBU predicts operators will not perform.

E. Bustos (2004): The Cascade Completes

The final link in the chain treated *Peralta's* broadest propositions as settled ratio for upholding the pesification of dollar-denominated deposits after the 2001 crisis.⁴² The doctrinal problem is multi-layered. *Peralta's* own ratio, to the extent it can be isolated, rested significantly on the finding that Congress had tacitly ratified DNU 36/90 by enacting Ley 23.871. This tacit ratification element was not fully replicated in *Bustos*. The pesification measures involved dollar-denominated deposits and foreign currency obligations raising treaty questions absent from *Peralta's* peso-deposit context. The Court elided these distinctions, treating the entire chain's accumulated obiter as established constitutional law.

Sagüés detected, after *Peralta*, "the elaboration of a new constitutional norm" about presidential decree power at the jurisprudential level.⁴³ That characterization is precisely correct in EPT terms: the accumulated obiter promotions across the chain had constructed a constitutional norm that no single decision's ratio ever established, no constitutional convention ever adopted, and no legislature ever enacted. The norm was an emergent property of the promotional process itself, a Parasitic Spontaneous Order built from the cumulative colonization of ratio by promoted obiter across eight decades.

⁴¹Stephen Jay Gould and Richard Lewontin, "The Spandrels of San Marco and the Panglossian Paradigm: A Critique of the Adaptationist Programme," *Proceedings of the Royal Society B* 205 (1979): 581-598. Gould later developed exaptation as a formal concept with Elisabeth Vrba in 1982.

⁴²CSJN, *Bustos c/ Estado Nacional*, Fallos 327:4495 (26 October 2004).

⁴³Nestor Pedro Sagües, *Manual de Derecho Constitucional* (Buenos Aires: Astrea, various editions).

VI. Comparative Institutional Analysis

If the EPT/HBU/EGT framework correctly identifies the causal mechanism of obiter creep, institutional variation across jurisdictions should predict variation in the phenomenon's intensity. Three comparative cases test this prediction.

Colombia: formalized distinction, persistent mechanism. Colombia's Constitutional Court has explicitly formalized the distinction between ratio decidendi and obiter dicta, attributing binding force to the former and persuasive force to the latter.⁴⁴⁴⁵ Diego Lopez Medina's influential work provided the doctrinal architecture for this formalization. Under the EPT framework, Colombia's formalization creates a formal predator: a doctrinal rule that, in principle, penalizes obiter promotion by making the distinction enforceable. The question is whether formal predators are sufficient when HBU remains operative. If Colombian operators still learn doctrine by observing institutional reactions (how the Court cites, how professors teach) rather than by independently verifying each cited proposition's status, then the formalization may reduce promotional frequency at the margins without eliminating the underlying mechanism.

Australia post-Farah: the "seriously considered dicta" gradient. The High Court of Australia introduced, in *Farah Constructions* (2007), the concept of "seriously considered dicta" that lower courts should treat with near-binding deference.⁴⁶ Harding and Malkin documented that post-*Farah*, Australian lower courts shifted toward treating themselves as under a "duty of obedience" to High Court dicta. In EPT terms, *Farah* did not reduce obiter creep; it *formalized* it, creating an explicit intermediate category that legitimizes the treatment of obiter as quasi-binding. The promotional strategy no longer needs to disguise itself.

England post-Ivey/Barton: explicit admission. The Court of Appeal in *R v Barton and Booth* (2020) confronted the constitutionally unprecedented situation of a formally binding lower-court precedent (the *Ghosh* test for dishonesty) contradicted by a unanimous Supreme Court obiter in *Ivey v Genting Casinos*.⁴⁷ Lord Burnett CJ held that "to that limited extent the ordinary rules of precedent have been modified." This is the most candid institutional admission of obiter promotion in any common law jurisdiction: a senior appellate court declaring that unanimous obiter from a supreme court overrides binding ratio from the court's own prior decisions. The significance for EPT is that institutional acknowledgment does not prevent the phenomenon; it ratifies it.

⁴⁴Diego Lopez Medina, *El derecho de los jueces*, 2nd ed. (Bogota: Legis, 2006).

⁴⁵On Colombia's formalization of the ratio/obiter distinction, see Lopez Medina, *supra* note 44, and the Corte Constitucional's explicit doctrinal framework attributing binding force to ratio decidendi and persuasive force to obiter dicta.

⁴⁶*Farah Constructions Pty Ltd v Say-Dee Pty Ltd* [2007] HCA 22.

⁴⁷*Ivey v Genting Casinos (UK) Ltd* [2017] UKSC 67; *R v Barton and Booth* [2020] EWCA Crim 575.

VII. Falsifiable Predictions

Following Popperian methodology, the EPT/HBU/EGT framework generates testable predictions that specify conditions under which the theory would be falsified.

Prediction 1: Asymmetric promotional frequency. Obiter propositions that expand state power should be promoted to ratio at higher rates than those that constrain it, because the former have denser constituencies (bureaucracies, unions, state-dependent academia) functioning as reproductive machinery. Falsified if, within the Argentine CSJN corpus, liberty-expanding obiter achieves fixation at equal or higher rates than power-expanding obiter.

Prediction 2: Variable fixation speed. Obiter that aligns with the dominant memplex in a given jurisdiction should reach "settled precedent" status in fewer citations than obiter that competes with it. Falsified if counter-memplex obiter achieves fixation as rapidly as aligned obiter, controlling for subject matter and court hierarchy.

Prediction 3: Resistance to genealogical audit. When a promoted obiter's genealogical fiction is publicly identified (i.e., when someone demonstrates that a "precedent" was actually obiter), the legal community should resist the correction in proportion to the density of extended phenotype already constructed around the promoted proposition. Falsified if genealogical audits produce rapid doctrinal correction regardless of phenotypic density.

Prediction 4: CLI correlation. Jurisdictions with higher Constitutional Lock-in Index scores should exhibit greater rates of obiter promotion, because institutional rigidity incentivizes informal doctrinal innovation when formal reform is blocked. Falsified if high-CLI jurisdictions show equal or lower rates of obiter promotion than low-CLI jurisdictions.

Prediction 5: Formalization insufficiency. Jurisdictions that formally distinguish ratio from obiter (Colombia) should exhibit lower rates of obiter promotion only if the formalization is accompanied by genealogical verification mechanisms. If the formalization is purely doctrinal (a rule that says "follow ratio, not obiter" without institutional tools for determining which is which), HBU should continue to operate because operators still update by reaction, not by verification. Falsified if purely doctrinal formalization produces measurable reduction in promotional rates without accompanying verification infrastructure.

VIII. Discussion, Limitations, and Counter-Arguments

A. The Flexibility Defense

The strongest defense of obiter promotion is functional: common law development requires it. Cross and Harris acknowledged that the indeterminacy of the ratio/obiter distinction has a "good side": it creates "leeways for judicial choice" enabling doctrinal adaptation without formal overruling.⁴⁸ Duxbury argued that obiter dicta have genuine "contextual value" in explaining decisions and communicating doctrinal guidance, and that eliminating their persuasive force would impoverish the common law.⁴⁹ Singh, while critical, acknowledged that the Supreme Court of Canada's jurisprudential-overseer role responds to a real institutional need.⁵⁰

The EPT framework does not deny this functionality at the system level. It argues, rather, that functionality for the precedent system may be dysfunctional for the legal system if it enables the accumulation of parasitic doctrine. The Argentine emergency chain illustrates the point: each individual promotion arguably served legitimate doctrinal development (adapting property doctrine to new economic conditions), but the cumulative result was a constitutional norm of unlimited presidential emergency power that no democratic process ever authorized. The question is not whether flexibility is valuable but whether the costs of unchecked obiter creep are properly accounted for in the flexibility defense.

B. Limitations

The case study is qualitative and jurisdiction-specific. The genealogical reconstruction of the emergency chain relies on doctrinal analysis of individual decisions rather than on systematic quantitative measurement of promotional rates across the Argentine corpus. A proper empirical test of the predictions in Section VII requires computational tools that operate at sub-case granularity: disaggregating each decision into propositional units, classifying each as ratio or obiter, and tracking citation patterns at the propositional level. The existing computational tools in the EPT research programme (JurisRank, RootFinder) operate at case-level granularity and would need to be extended to propositional-level analysis for this specific application.⁵¹

The ratio/obiter classification itself presents an irreducible interpretive challenge. As Section II established, the distinction is constitutively indeterminate; any classification I impose is itself an act of interpretive choice subject to the same critique I level at the courts. I have attempted to anchor my classifications in the minimal necessary holdings (following Wambaugh's inversion

⁵¹Ignacio A. Lerer, "The Peralta Metamorphosis: Quantifying the Evolution of Legal Parasitism Through Computational Analysis of Argentine Constitutional Degradation" (Zenodo, 2025).

logic: what propositions could be removed without changing the disposition?), but reasonable observers may disagree on specific classifications.

Reverse causation remains plausible: perhaps judges with preexisting substantive commitments select obiter that supports those commitments, making the promotional mechanism epiphenomenal to ideological preference. Disentangling promotional dynamics from ideological selection requires longitudinal data that is not yet available.

A methodological candor is appropriate here. The initial research design anticipated two types of migration (status and institutional). The third type, functional migration, emerged from the case study itself: the recognition that Peralta inverted the regulatory direction of the doctrine it cited was not a prediction of the framework but a discovery of the genealogical reconstruction. An ideal design would begin with the quantitative propositional dataset described above, permitting systematic identification of all three migration types across the full corpus before selecting cases for qualitative analysis. The present paper proceeded in reverse: qualitative case analysis first, quantitative tools proposed as agenda. This sequence reflects the current state of tool development rather than the optimal research architecture.

C. Future Research Agenda

The analysis suggests three priority lines for future work. First, the development of propositional-level computational tools (extending RootFinder to what might be called ObiterTracker) capable of systematically identifying and tracking promotional events across large corpora. Second, cross-jurisdictional comparative measurement of promotional rates, testing Prediction 4 (CLI correlation) against empirical data. Third, the connection between the Argentine "argumentacion proyectiva" literature⁵² and the Anglo-American judicial signaling literature, bodies of scholarship that have developed in parallel without cross-referencing and whose integration promises to enrich both.

IX. Conclusion

Obiter creep is not a failure of legal reasoning. It is the predictable outcome of an evolutionary dynamic operating in an environment where: the boundary between ratio and obiter is constitutively indeterminate (creating the ecological space for promotion); the promotional strategy dominates alternatives under EGT analysis (making promotion rational for individual judges); and HBU-driven reaction-based learning ensures that promotions propagate without genealogical verification (making promotions sticky). The Argentine emergency doctrine chain

⁵²Gustavo Arballo, "Evolucion y dinamica del precedente," *El Derecho* (UCA).

demonstrates how, through eighty-two years of cumulative obiter promotion, five decisions produced a constitutional norm of presidential emergency power that no single holding, no constitutional convention, and no legislative act ever established.

The framework identifies three types of migration operating in *Peralta*, the chain's most complex link: status migration (obiter to ratio), institutional migration (legislature to executive), and functional migration (regulation to deregulation, an exaptation in Gould's sense). No prior analysis of obiter promotion has distinguished these three dimensions, and their simultaneous operation in a single case suggests that the phenomenon is more architecturally complex than the literature has recognized.

The comparative analysis suggests that formal doctrinal responses are insufficient: Colombia formalized the distinction, Australia created an intermediate category, and England candidly admitted the modification of precedent rules by obiter. None of these responses addresses the underlying cognitive mechanism. As long as legal operators learn doctrine through HBU, observing institutional reactions rather than independently verifying genealogical content, obiter creep will continue. Addressing it requires not better rules but better tools: systematic genealogical audit mechanisms that make the promotional strategy costly and detectable. Whether legal systems will develop such tools, or whether the flexibility defense will continue to rationalize the status quo, remains an open question that future research must answer.

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